



POLICE DEPARTMENT

January 28, 2010

MEMORANDUM FOR: Police Commissioner

Re: Sergeant William Lewis
Tax Registry 885949
Fleet Services Division
Disciplinary Case No. 85271/09

The above-named member of the Department appeared before me on October 7, 2009, October 21, 2009, and November 4, 2009, charged with the following:

1. Said Sergeant William Lewis, while assigned to 120th Precinct, while on-duty, on or about and between June 1, 2007 and December 31, 2007, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Sergeant failed to properly supervise the summons activity of five (5) members under his direct supervision thereby enabling those members to draft over one-hundred and forty (140) summonses containing false or omitted entries.

PG 203-10 Page 1, Paragraph 5 PROHIBITED CONDUCT

2. Said Sergeant William Lewis, while assigned as indicated above, while on-duty, on or about and between June 1, 2007 and December 31, 2007, wrongfully and without just cause repeatedly failed to ensure that five (5) members of the service under his direct supervision properly performed their duties by visiting said members at frequent and irregular intervals and regularly inspecting and endorsing their Activity Logs, as required.

PG 202-17 Page 1, Paragraph 14 PATROL SUPERVISOR
PG 212-08 Page 2, Paragraph 5 PROHIBITED CONDUCT

The Department was represented by Adam Sheldon, Esq., and Nancy Slater, Esq., Department Advocate's Office, and the Respondent was represented by Eric Franz, Esq., and Timothy Parlatore, Esq.

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The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

INTRODUCTION

The Respondent was the conditions sergeant in the 120 Precinct assigned to the first platoon for the charged period. During that time, five officers working for him, Police Officers Robert Santangelo, Robert Putney, John Uske, Derrick Epstein and Matthew Weinstein, issued a number of improper summonses. The Respondent has pled guilty to the charges in this case, therefore, the sole issue is penalty. The Department has requested termination, while the Respondent has asked that a lesser penalty be imposed.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent

The Respondent is a 25-year member of the Department. He acknowledged that he pled guilty to failing to supervise officers under his direct supervision, but he denied that any of those officers ever presented him with false or fictitious summonses. He similarly denied ever telling his officers to issue fictitious summonses.

The Respondent was placed on modified duty status about 19 months ago. He described his current duties as "sitting in an empty garage [on] Metropolitan Avenue in

Queens.” There, he checks police cars needing servicing as they come in throughout the evening. The Respondent asserted that he has been denied a meal period for the past two years and that he was provided with no reason for this denial. He similarly claimed that he was denied vacation time at one point. Another time, the Respondent took sick time due to [REDACTED]. He said that he was [REDACTED] [REDACTED].” The Respondent said that he visited numerous [REDACTED] and that he was not permitted out of his house to travel.

The Respondent affirmed that he was previously the subject of another proceeding before this court in which a decision was issued.¹ Following the decision, the Respondent claimed that the Integrity Control Officer (“ICO”) of his command informed him that the Police Commissioner had “asked for [his] paperwork” and told him that he should be retired within two weeks.

From June 1, 2007 to December 31, 2007, the Respondent said that he had multiple assignments. Although he was assigned as the conditions sergeant at the 120 Precinct, as a result of a new platoon commander [Lieutenant Alex Markov], the Respondent claimed that his assignment would constantly be changed. He testified that the platoon commander would reassign the patrol supervisor to desk officer and reassign the Respondent to patrol supervisor, thus allowing the platoon commander to “stay in.” The Respondent said that a patrol assignment differs from a conditions assignment in that he would be in charge of a whole precinct, and that he was the only sergeant in charge of the precinct while the patrol sergeant assumed the duties of desk officer.

¹ Disciplinary Case Nos. 82103/06, 82873/07 & 83810/08

The Respondent claimed that the 120 Precinct was one of the busiest precincts in the city. When assigned as patrol supervisor, he addressed "homicides, rape, robberies, crime scenes, 49's." He also overlooked numerous sector cars and answered calls himself. The officers on the Respondent's conditions team were also reassigned to various other jobs within the precinct by the platoon commander, such as patrol or hospitalized prisoners. The Respondent testified, "There was nothing left of my conditions team at the time, so I really had nobody else to supervise. It was just me out there answering jobs, and sometimes the precinct was in backlog and would be holding 15, 20 jobs, and I would be answering 15, 20 jobs myself." Additionally, around this time, there was a "Ninja Burglar" in Staten Island. As a result, the platoon commander would reassign the Respondent's personnel to different locations and he would be stuck on patrol. Although assigned as the conditions supervisor, the Respondent agreed that there was a significant period of time during the time period of the charges that he was performing more duties than just a conditions supervisor.

The Respondent testified that he informed his supervisor, the special operations lieutenant, and his commanding officer that he could not perform his functions as the conditions sergeant. He said that the situation was so out of hand, he called both the special operations lieutenant and the commanding officer at their homes to inform them that he could not control his personnel and that he could not "run around the precinct and do multiple tasks and functions while performing conditions and then doing patrol." He stated that the 120 Precinct is the busiest in the city. Notwithstanding this, the Respondent acknowledged that it was his job to supervise his officers and that he failed in doing so. He averred that he could not supervise his officers, that he went to his

commanding officer, and that the situation was “so out of hand.” The Respondent reiterated that 90 percent of the time he would not be a conditions supervisor, but rather, a patrol supervisor and he would have to “function and have to do everything...”

The Respondent asserted that he is an active sergeant and has given his whole life to the Department. He claimed that he performed his job as best as he could and that he wants to retire and move on. The Respondent testified that he was “run thin” and he accepts full responsibility for his behavior.

On cross-examination, the Respondent agreed that a patrol supervisor generally answers 911 calls and responds to crimes, whereas conditions supervisors have a specific role to address certain conditions within a precinct. As a conditions sergeant, he was assigned a team of five officers. While he claimed that a patrol supervisor’s job is harder than a conditions supervisor’s, the Respondent agreed that both supervisors are supposed to ensure that their subordinates are doing their jobs. However, the Respondent said that a conditions sergeant is guided by complaints from the community or community board, which are received by the special operations lieutenant and the commanding officer. He agreed that a conditions supervisor is supposed to visit subordinates during different intervals during a shift, much like a patrol supervisor is supposed to “scratch”² the memo books of subordinates. He denied that the conditions supervisor was responsible for the activity of the conditions team; he specified that it was the responsibility of the conditions sergeant, the special operations lieutenant and the commanding officer. The Respondent disputed that he was continuously the direct supervisor for the conditions team all the time.

² Sign one’s signature.

The Respondent testified that at the conclusion of a tour, the conditions team members would submit their activity in "the box."³ The activity would not be presented to the Respondent unless he had to address a specific condition such as a bar. Criminal court summonses would be handed to him on certain instances, for certain conditions within the precinct, so that they could be photocopied and presented to the inspector. The Respondent clarified that the members of his conditions team did not ordinarily turn summonses into him; he said that, for example, if they stopped a driver of a car and issued a summons, the summons would not ordinarily be presented to him. The Respondent agreed that, like a patrol supervisor, a conditions supervisor is supposed to verify the monthly activity of his team. He denied that he did this task all the time, however, specifying that as a result of personal problems, he was not able to be at work all the time. In his absence, the special operations lieutenant would do the monthly activity reports and evaluations of the Respondent's personnel. The Respondent testified that he did not always sign off on the activity of his officers and that he split that task with Lieutenant Sheehan, the special operations lieutenant.

The Respondent said that he does not possess his Activity Log for the time period of the charges; it was turned over to the ICO of the 120 Precinct, Lieutenant Del Rosario. He was unsure if Del Rosario ever received his Activity Log, as he was instructed to put it in his mailbox.

The Respondent reaffirmed that he was assigned to patrol duties as opposed to conditions duties about 90 percent of the time that he worked. He disputed that there was documentation for every instance that someone's post is changed. He did not make any

³ A reference to a precinct summons box, a repository where completed summonses are stored prior to being processed and forwarded.

notations in his Activity Logs when his assignment was changed. The Respondent testified that the platoon commander would call him in the middle of the night while he was working and inform him that he was to assume the duties of patrol supervisor. He did not note these assignment changes anywhere.

Regarding his plea of guilty to Specification No. 2, the Respondent admitted that he did not regularly "scratch" his officer's Activity Logs. He agreed that it was possible that he signed one police officer's book on one occasion in seven months. The Respondent never checked to see if the members of his conditions team were documenting occasions on which they were assigned to patrol duties.

The Respondent stated that his regular driver, Santangelo, would be with him for an entire eight hour tour, unless a situation arose that would require the Respondent perform some other duty like setting up a crime scene or preparing a "49"⁴ in the stationhouse. In such an instance, he said that Santangelo would be "on his own." The Respondent acknowledged that several members of his conditions team would occasionally ride around with him during the tour.

The Respondent denied that he was reassigned from his conditions duties to patrol duties because other supervisors were not doing their jobs. He asserted that "...when you take me from my conditions unit and pull a patrol sergeant, put him on the desk and you're staying in the house to do other work, I don't know, I am just saying that I had no function as a conditions supervisor and I lost my conditions team and I lost control of my men."

The special operations lieutenant of the Respondent's command, Sheehan, was his supervisor. He reported to the inspector of the precinct. The Respondent met with the

⁴ An official Department memorandum.

inspector concerning goals for precinct conditions, such as a specific amount of activity that was to be met. The Respondent believed that his team met the monthly activity for each month of the investigation in this case, except for a few times where there was inclement weather. The Respondent stated that he has worked for four inspectors in the past and met whatever was needed. He denied that he would document any lack of activity by his team anywhere; there is no such document for that purpose.

The Respondent reiterated that the platoon commander neither performed patrol or desk officer duties. He asserted that "90 percent or more" of the time he was working, even as the conditions sergeant, "I managed to get in my car and make it out as the conditions sergeant, I would get a phone call [from the platoon commander] saying you are now the patrol sergeant." He complained about this to the special operations lieutenant and his commanding officer at the time, Inspector Bruno, in person. He did not make any formal complaints to the Internal Affairs Bureau; he claimed to do so would not be proper procedure. Rather, he called his commanding officer at home and advised him of this problem.

During the time period in this case, the Respondent agreed that there were times where he was not at work due to personal problems or being sick. When not at work, other supervisors covered the tour and performed duties that the Respondent was asked to do. He believed those supervisors were assigned to patrol duties, and he was unaware if those supervisors complained about being assigned to those duties.

The Respondent agreed that when he was assigned to patrol, he was still responsible for the officers on his conditions team. He reiterated that there were occasions where he would not see members of his team for an entire tour, and that the

120 Precinct was one of the busiest in the city. The Respondent based his claim about the demands of the 120 Precinct on “facts and figures” that he said he personally reviewed. Within the precinct, the Respondent said that there were shootings every other day, rapes and robberies. He characterized the precinct as being “out of hand” and noted that since being assigned there 12 years ago, crime increased. The Respondent denied that activity within the 120 Precinct significantly decreases after 2:00 am.

When asked if there were any times when he and the members of his team were under his control and able to perform conditions duties, the Respondent replied affirmatively. However, he said this was a rarity. Between June 2007 and December 2007, it was rare because “a lot” of his officers were out sick, some took time off, and his driver had military obligations. The Respondent further testified that he was the conditions sergeant at the 120 Precinct for 12 years, and before the arrival of Markov, the platoon commander, he never had any problems performing conditions duties.

The Respondent had a professional, business relationship with all of the members of his team. He described Santangelo as a pretty aggressive officer, Uske as “respectful and pretty right down the line,” Weinstein “a little off the beaten path...a good officer,” Epstein, immature, but not to the extent that it affected his performance, and Putney, a good aggressive officer.

On days when he was able to perform conditions functions with his officers, the Respondent admitted that there was nothing preventing him from examining or signing their Activity Logs. On occasions when he and his team performed conditions duties, the Respondent would meet his officers at a predetermined location to discuss plans and goals for the evening. Thereafter, the plan would be carried out, and subsequently, the

team would meet for meal to discuss the evening's tactics and goals. If necessary, the Respondent said that he would copy their summonses for submission to the commanding officer in a sealed envelope. In response to the Court's question, the Respondent said that on the days he did perform his duties, there was no time to review the work of his subordinates from other evenings because he was "overworked and ran thin." He reiterated that while, on certain occasions, he was able to collect and photocopy activity from a particular evening, it was too much to review prior activity from other evenings.

When assigned to patrol duties, the Respondent testified that he would "scratch" the memo books of officers at certain assignments if he happened to respond to those assignments. He did not respond to every single assignment, but, he said for example, if three sectors responded to an assignment he would sign all of their books at once. He would not review their summons activity as that was the responsibility of their respective squad sergeant. The Respondent testified that in the event that the commanding officer wanted specific activity from his team, i.e., a specific location targeted, he would check to make sure his officers obtained that activity. He also would forward copies of that activity to the commanding officer. The Respondent clarified that he reviewed summonses that pertained to conditions work but not those concerning non-conditions work such as summonses issued arising out of a car stop. He admitted that he was responsible for reviewing the activity of the officers working under him at the end of the month, including criminal court summonses not necessarily related to conditions.

In performing patrol or conditions duties, when members of his conditions team accompanied him on patrol, the Respondent acknowledged that he would supervise their activity. The Respondent testified that he did not inspect every summons; it depended on

the situation. Where, for example, he entered a bar with his team, he would instruct his officers as to what summonses to issue and would subsequently examine them. In the event, say, that the Respondent observed someone urinating on the sidewalk, one of his officers would issue the summons and there would be no need for the Respondent to examine it. The Respondent was unable to recall any mistakes with any summonses he checked during the seven month period encompassed in the charges in this case.

The Respondent agreed that an officer who signs out a new summons book does so by documenting it at his precinct. When asked if he checked to ensure that his officers were not backdating summonses, issuing them at a date prior to when they signed the summons book out, the Respondent asserted that was the job of the ICO. He conceded that he never checked but asserted that it was not his job. Similarly, he said that he neither had the time nor was it his job to check roll calls to make sure that his officers who wrote summonses on dates were, in fact, working on those dates. The Respondent denied ever failing to check his subordinate's activity in the precinct database; he averred that a few months before being transferred from the 120 Precinct, he did these checks with Lieutenant Sheehan. He did not recall the dates but recalled that he was transferred sometime in March of 2008. The Respondent testified that it was not his job to query the summons database, he is computer illiterate, and that he does not know how the system operates. He stated that when he asked Lieutenant Sheehan about the database, Sheehan told him that it did not look too good. The Respondent said that Sheehan remarked, "your guys are off, but then again...so is everybody else." No specifics were provided and the Respondent did not access the database himself.

When shown a roll call for the first platoon on June 6, 2007 (Department's Exhibit [DX] 1), the Respondent identified that six supervisors were working and that he was assigned as a conditions sergeant. His operator was Santangelo and his officers were assigned to conditions duties. After being shown photocopies of criminal court summonses, the Respondent testified that three were issued by Putney, but that some were illegible and unsigned. He noted that none of the summonses issued by Putney listed an ID number, however, they included the defendant's name and date of birth. The Respondent reiterated that none of Putney's summonses contained an ID number or state or type of ID; rather, they were just left blank. He agreed that none of the three summonses that he was presented with, issued by Putney, had any identifying information.

The Respondent averred that he believed it to be sufficient identification of a person being issued a summons if another person at the scene confirms that person's identity. He said, "If there is a relative on the scene and he can vouch for that person [being issued the summons]..." that constitutes an adequate identification. He denied that a police officer was required to obtain identification from an individual being issued a criminal court summons. In response to the court's inquiry, the Respondent testified, "If [the defendant] doesn't have proper ID on him, he is brought to the station house. If he is not brought into the station house, if there is somebody on the scene that can verify his ID, that would be fine."

The Respondent was shown a summons (DX 2), dated June 6, 2007. He recognized the signature on the bottom of the summons as belonging to Putney. He agreed that the summons contained no identification number, but asserted that does not

need to be filled out all the time. In response to the Court's inquiry, the Respondent indicated that an identification number would refer to some sort of "proper ID" like a New York State license or other picture identification. The Respondent further agreed that this summons lacked any information regarding a license class or ID type, used to document the actual type of identification used to identify the defendant receiving the summons.

The Respondent was shown additional summonses (DX 3- 4) and identified both as having been issued by Putney on June 6, 2007. He agreed that these summonses, like the one in evidence as DX 2, failed to include any information as to the defendant's identification.

The Respondent indicated that he supervised Weinstein for possibly a year, although he was not exactly sure.

After a break in the proceedings, the Respondent returned to the stand and his cross-examination resumed. He reviewed a collection of roll calls pertaining to the first platoon, the tour that he worked in December 2007 (DX 5), and determined that he worked on 11 occasions that month. He testified that, according to the roll calls, he worked on December 1, December 2, December 6, December 8, December 12, December 13, December 14, December 15, December 19, December 20, December 21 and December 22. With the exception of December 8 and December 15, when he performed patrol duties, he was assigned to conditions functions on those days that he worked. Additionally, the Respondent identified the number of supervisors working within the 120 Precinct on each day that he worked. On December 1 and December 14, he said that there was one lieutenant and two sergeants; on December 2, December 6, December 12,

December 13, December 19 and December 21, one lieutenant and three sergeants; on December 20 and December 22, one lieutenant and four sergeants.

The Respondent agreed that, as reflected on the roll call, during the aforementioned days, he was switched from conditions to patrol twice, "...on paper..." He agreed that if he was not listed on the roll call, then he was not working.

On June 6, 2007, the Respondent agreed that five other supervisors were working on his tour, the midnight tour. He recalled that on that evening, three summonses were issued by Putney. He was unsure if Putney was under his supervision that evening, and was similarly unsure as to how busy the precinct was that night. The Respondent asserted that he could tell "off the top of [his] head" that June 6, 2007, a Wednesday night, would have been busy up until about 4:00. When asked by the Assistant Department Advocate ("Advocate") if he was surprised that there was one arrest for the whole tour, the Respondent stated that would be hard to believe.

The Respondent was shown a roll call for June 27, 2007 (see DX 6). While it showed him assigned to conditions, the Respondent averred that he performed patrol duties that day. He noted that one lieutenant and three sergeants were working that day, and Uske was assigned to conditions. During *voir-dire* of a summons issued by Uske on that day (DX 7), the Respondent said that the caption on the bottom of the summons listing squad reflected that Uske was working in the burglary unit. This was despite the roll call showing Uske assigned to the conditions unit that day. On continued cross-examination, the Respondent denied that the conditions unit encompassed the burglary unit; there was a separate sergeant who supervised that unit. He conceded, however, that at night, he was assigned to watch officers assigned to the burglary team in addition to

conditions. The Respondent reiterated that the summons he testified about, DX 7, issued by Uske, appeared to be issued on either June 23 or June 27. He agreed that an officer who issues a summons is supposed to retain the “yellow gold” copy of same as a record of their own activity. This summons, issued for an open container of alcohol in public, lacked an identification number, license date and license type.

The Respondent disputed that he wrote summonses for his entire career. He averred that he has not written a summons in years, and noted that it had been about 20 years since last issuing one. He testified that he has been a sergeant for half of his career, has read the Patrol Guide and said that he is familiar with the information that goes on a summons. The Respondent denied that a summons for an open container is insufficient if it lacks a description of the alcohol. He contended that information is recorded on the reverse of the first copy of the summons⁵ and is signed by the issuing officer. That information would not be on the carbon copies. The Respondent reiterated that he did not review his officer’s daily summonses unless a certain location was targeted for enforcement. He noted that he would not have reviewed a summons such as DX 7, and it was not his practice to review criminal court summonses. The Respondent asserted that it was not his job to ascertain if summonses issued by his personnel were sent to criminal court; he claimed that was the job of the ICO, and, noted that completed summonses were deposited into a box at the end of the tour. He said, “I would see a hundred summonses in the box. I don’t stand there and watch each cop put summonses in the box no...”

When asked if a summons without an identification number is sufficient according to Department guidelines, the Respondent asserted that the Patrol Guide is a

⁵ The supporting deposition of the summons.

guide. He was taught in the Police Academy that the Patrol Guide was a guide and differed from what occurs in the street.

A criminal court summons issued by Uske (DX 8) was shown to the Respondent. The Respondent said that it was issued on either June 23 or 27, for unreasonable noise. The summons listed the defendant's name, his address, his date of birth and sex. It lacked an identification number, license state or license class. An additional criminal court summons, also issued by Uske (DX 9), appeared to be issued on June 23 or 27. This summons also had no license class or ID type listed on it. The Respondent believed that June 27, a Wednesday, would have been a busy tour that died down after a certain time.

In reviewing the December 19, 2007 roll call (DX 5), the Respondent determined that he was working and assigned as the conditions sergeant. Additionally, he stated that one lieutenant and three sergeants were working during that tour. Santangelo, who was also working that evening, was assigned to the conditions auto. The Respondent believed that he was his driver that day. He identified a summons written by Santangelo on December 19 (see DX 10), for open container, and testified that there was no ID number, license state, or ID type specified on the summons.

The parties stipulated that another summons issued by Santangelo was similarly missing the ID number, license state or ID type (DX 11). The Respondent was unable to read a summons, also issued by Santangelo, which had a New Jersey address and listed a New Jersey ID card, but no ID number (DX 12). An additional summons (DX 13) also referenced a New Jersey ID card and was somewhat illegible.

While the Respondent was not in possession of his Activity Log for June 2007 to December 2007, he agreed that he would have written information into his Activity Log during that period concerning the supervision of his personnel. He reiterated that he put many of his Activity Logs into the 120 Precinct ICO's mailbox, after being instructed to do so. The Respondent clarified that he relinquished his Activity Logs prior to being questioned by IAB Group 33 for allegations involving his failure to supervise his subordinates. The Respondent stated that he was not told why he needed to submit his Activity Logs and did not get a receipt for doing so. He said, "[Del Rosario] would ask me all the time to leave my memo books in his box and certain other stuff that he asked for and it just goes in his box you don't get a receipt." He agreed that most of what he submitted to Del Rosario's mailbox were returned but certain things were not, including a few memo books encompassing the June 2007 to December 2007 period. He specified that he submitted Activity Logs to Del Rosario, IAB and Investigations personnel and they were actual Activity Logs and not photocopies. The Respondent never inquired of Del Rosario where his Activity Logs went.

The Respondent recalled previously testifying that he was denied meal periods while assigned to Fleet Services on modified assignment. He affirmed that when he was placed on modified assignment, he was transferred from the 120 Precinct to Fleet Services and reiterated that he has been denied a meal for two years. The Respondent stated that it was only until recently that he was permitted to take a meal. He testified that at Fleet Services, he sits in a garage by himself on the midnight tour, the same tour that he worked while at the 120 Precinct. His duties include accepting incoming cars for repair and securing the shop.

As to receiving a meal, the Respondent asserted that it was a right and not a privilege. He contended that a uniformed member is supposed to receive a meal absent an exigent circumstance, in addition to two 20 minute personal breaks. The Respondent claimed that throughout the two year period that he was assigned to Fleet Services, he requested to be relieved "a few times" and was denied. He recalled that when he was first assigned to Fleet Services, he requested to go to meal around five or six o'clock. This request was denied by Lieutenant Hering. While he remembered that this occurred sometime in 2008, he was unsure of the month. When asked about other instances where he was denied a meal period, the Respondent stated, "I just know not to ask for one because it is going to get denied." He recalled being granted a meal a few weeks ago when he was ill, and testified that someone relieved him because his post can not be left unattended. The Respondent clarified that he is not denied the ability to eat food, but he specified that he has to bring his own and that the kitchen is closed and locked.

The Respondent affirmed that he previously testified that he was denied vacation time while assigned to Fleet Services despite having vacation time on the books. He agreed that he receives 27 vacation days annually in addition to one chart day per month. The Respondent believed that he might have had a few hours of vacation time on the books upon his assignment to Fleet Services, but he was not sure. He testified that an "E-day" is an emergency excusal day, usually granted in case of an emergency. He was permitted to take these days while assigned to Fleet Services when he had emergencies. The Respondent recognized an Absence and Tardiness Record (ATR) for 2008. During that year, he took 27 vacation days, two "comp" days and took lost time on eight different occasions. In 2009, he agreed that he took time off but was unsure as to how many days.

The Respondent agreed that he was denied the ability to take time off after depleting all of his vacation and compensatory time in May of 2009. He asserted, however, that this was not the first time being denied vacation time. He noted that it was denied on and off since his assignment to Fleet Services. The Respondent agreed that he used all of his vacation time. He denied that his vacation requests were not approved because he did not have any time on the books. He alleged that he would periodically ask Hering for time off, on a Friday or Sunday evening, and the request would be denied. This was because Hering claimed that no one was available to work.

The Respondent denied that he was allowed to work overtime at a time-and-a-half rate once he had exhausted his leave balance so that he could accumulate more time. He said that because he was short time, he made it up by working on his days off.

When shown Patrol Guide § 209-09, Personal Service of Summonses Returnable to Traffic Violations Bureau or Criminal Court, the Respondent agreed that this procedure sets forth how summonses are to be issued. He reaffirmed that there are circumstances where a summons may be issued where an individual does not have identification, such as when a family member is able to confirm the identity of the individual. When asked by the Advocate to identify that allowance within Patrol Guide § 209-09, the Respondent stated, "Members should know that these are general guidelines and other forms of ID may be acceptable to conduct license checks and warrant checks." He understood this to mean that a family member at the scene can confirm an individual's identity and that was sufficient to conduct a warrant check and issue a summons. The Respondent explained that a warrant check is performed by using an

individual's name and date of birth. In further explaining his understanding, the

Respondent provided the following hypothetical example. He stated:

Say you have five Mexicans...being issued summonses [,] these people don't have Green Cards they have no form of ID [,] you are not going to take five Mexicans in the house and crowd up the house so at the scene if these people are intoxicated or do consume or have a beverage on them [,] they are issued summonses off of their name or date of birth.

The Respondent testified that he was responsible for supervising the five members of his conditions team at times. He asserted that there were instances where he was not responsible for supervising his team, such as if a lieutenant were to give them a different assignment. He agreed that he would receive activity reports from his team for his review each month, and in turn, would prepare a monthly recapitulation of that activity. He said that all he did was transfer the numbers from his officer's activity reports to the recapitulation report and never reviewed any numbers for accuracy. The Respondent never reviewed roll calls or past summonses and said that was not his job. Sometimes, there were occasions where he did not complete the recapitulations, like when he took time off from work.

Supervisor's recapitulation reports were received in evidence for July, August, September, October and November 2007 (DX 14-18). The Respondent identified the reports and believed that his signature was indicated on the bottom of each report. He noted that on some occasions, if the report was needed right away, his officers would fill in the activity. As to the November 2007 report, DX 14, the Respondent testified that each officer, Weinstein, Putney, Uske and Epstein, issued ten criminal court summonses each. Each of the officers prepared and submitted a monthly activity report reflecting their monthly criminal court activity. He stated that these monthly activity reports were

not always handed to him and he asserted that he would “go off their activity report[s]” to determine how many summonses they had issued. The Respondent agreed that he transferred the numbers from the officer’s reports onto his recapitulation report.

In response to examination by the Court, the Respondent testified that there are different types of summonses such as traffic summonses and conditions summonses (for offenses such as urinating in public and underage drinking). He noted that the only occasion that he would review criminal court summons activity was if the commanding officer wanted a specific location, such as a bar, targeted. In such an instance, he would review those particular summonses and place them in a sealed envelope for the commanding officer along with copies for the special operations lieutenant. He would also keep copies for himself. The Respondent clarified that he reviewed only those summonses that were specifically requested to be issued by the commanding officer.

The Respondent reiterated that he retained copies of summonses that were issued along with State Liquor Authority violations. He agreed that he was asked to provide these to the Department in an Official Department Interview. When asked if he provided the documents, the Respondent indicated that his attorneys have them and asserted that the Department has their own copies. He recalled an Official Department Interview on April 28, 2009, conducted by IAB Group 33. The Respondent acknowledged that he was advised of the warnings regarding making false statements and agreed that his attorney was present for the interview. He remembered telling the interviewers that his officers were assigned to address quality-of life issues, and issue criminal court summonses and moving violations. The Respondent, however, did not recall testifying at his interview that his officers handed him the summonses at the end of his tour.

On redirect examination, regarding DX 1, the June 6, 2007 roll calls, the Respondent did not dispute its accuracy. He testified, however, that circumstances often arose during a tour where the printed roll call assignments would differ. He said that in Staten Island, a lieutenant was required to be assigned to the desk. However, he claimed the lieutenant⁶ did not want the desk so he would reassign the patrol sergeant to the desk and reassign the Respondent to patrol sergeant. He added that Sergeant DeSimone, the precinct's ferry sergeant, would not go out on patrol because he was "afraid of the street" and that if he (DeSimone) was unable to perform ferry duties, he would submit a Leave of Absence Report and go home. While unsure of Sergeant Jackson's assignment, the Respondent stated that he was a junior sergeant. In sum, the Respondent stated that he was assigned to patrol for no reason and expressed his distaste with the way that the 120 Precinct was run for the last two of his 12 years there. He asserted that this occurred throughout June 2007 to December 2007.

In response to the Court, the Respondent agreed that the roll calls do not necessarily reflect tour changes that occurred later in a particular tour. He stated that he does not have his memo books; they were submitted to the 120 Precinct ICO whom he has not seen in two years.

On continued redirect examination, the Respondent agreed that some of the squad supervisor's recapitulation reports were signed by him. He reiterated that his officers would submit monthly activity reports from which he obtained their activity and transposed those numbers onto the supervisor's recapitulation report. He stated that he never had any reason to believe that his officer's monthly reports were inaccurate and

⁶ It was not clear who the Respondent was referring to.

noted that in his ten years of being a sergeant, he never had any problems with improper summonses being issued.

The Respondent reiterated that he relied upon the monthly activity reports of his subordinates in generating his own supervisor's recapitulation (RX A, police officer's monthly activity reports to correspond with DX 17). Nothing in the officer's reports indicated how many summonses were "fake" and the Respondent said that these reports have been used for years. The Respondent testified that in order to determine if a summons was not legitimate, he would have had to have examined the original copy that he does not receive. That copy is deposited in a summons box at the end of the tour. The Respondent asserted that he had no idea that his officers were issuing illegitimate summonses.

On re-direct examination, the Respondent reiterated that officers retain copies of summonses that they issued for a period of time and then submit it. He stated, again, that he relied upon their monthly activity reports and did not seek to determine if they were accurate.

Lieutenant Alex Markov

Markov, a 21-year member of the Department, was previously assigned to the 120 Precinct where he was the first platoon commander. The first platoon is from 11:00 pm to about 8:00 am and Markov stated that he worked this tour from June 1, 2007 to December 31, 2007.

Markov noted that the Respondent was the conditions sergeant at the 120 Precinct from June 2007 to December 2007. He did not directly supervise the Respondent's team;

that was Sheehan's responsibility. Similarly, he was not responsible for the activity of the conditions team and he did not "sign off" on any of their paperwork.

Assignments were indicated on the roll call. If there were staffing issues regarding supervisory coverage, Markov would document this on the roll call and supervise it accordingly. Markov testified that the sergeants would typically decide amongst themselves who would handle the duties of desk officer under his supervision. He claimed that the Respondent was not involved in that process unless he was the only sergeant working. In the event that two other sergeants were working, one would assume the duties of desk officer and the other patrol supervisor. If there was only one sergeant working, Markov would stay inside the command. He claimed that most times the Respondent was working, he was assigned as the conditions sergeant.

Markov admitted that on some occasions, he would change the Respondent's assignment. He explained that if there was a serious issue, such as a shooting, or if another sergeant needed to take a meal, he would ask the Respondent to "help out." Asked how frequently this occurred, Markov said, "...infrequent. Very rare." Markov clarified that if supervisory coverage for the precinct was shorthanded, and the Respondent was asked to cover another sergeant's duties so that he could take a meal, it would take about an hour. In the event that the Respondent was assigned to cover patrol for a tour instead of his conditions assignment, this would be documented on the roll call. Markov testified, "[the Respondent] was pretty much left alone to do his special ops duties. Like I said, if an issue came up if there was a shooting, then I would ask him to help out." He explained that he was left alone because he had particular duties to perform for the special operations lieutenant and the commanding officer. Markov also

noted that the Respondent “had time on the job,” that he was a senior member of the Department.

Markov described his relationship with the Respondent as being a good working relationship. He never had any problems with him and the Respondent never complained about being reassigned from conditions duties to patrol duties. He recalled that the Respondent did complain about not being able to perform duties in plain clothes; in the past, the conditions assignment was a plainclothes detail. The commanding officer, however, changed that. Markov testified that the Respondent never made any complaints about him (Markov) staying in the stationhouse instead of performing patrol duties. He recalled that the Respondent felt that the ferry sergeant should have helped out more and that his duties should have been reassigned. However, the precinct’s commanding officer required that a supervisor be assigned to the ferry.

On cross-examination, Markov affirmed that he knew of the investigation of the Respondent’s conditions team concerning the issuance of improper summonses. He was never interviewed during that investigation even though the Respondent worked on his tour and was subordinate to him. He agreed that it was his job to supervise the Respondent and averred that he did, in fact, supervise him. Markov never reviewed the Respondent’s paperwork and never interviewed him to ensure that his conditions team was performing their duties properly, he did not feel this was necessary.

Markov agreed that when a roll call is generated, it is an “unfinalized” draft. Handwritten notations made on the roll call reflect changes that are made. Markov stated that the sergeants would “line out” the roll call in amending or maintaining it and he would ensure that it was done properly. Regarding the 120 Precinct roll calls from

June 1, 2007 to the end of December 2007, Markov said that he had seen some of them from that time period and also prior to testifying. He claimed he did not see all of the roll calls within that period and was unsure how accurate they were. In looking at the June 1, 2007 roll call for the first platoon, Markov stated that it showed Uske assigned to the burglary auto. He agreed that an individual assigned to burglary is not assigned to conditions but added that burglary was under the Respondent's supervision. Markov stated that he was not working on June 1 and did not review the roll call for that day.

On August 15, 2007, Markov was working as the Impact lieutenant and the Respondent as the "zone all" supervisor. Putney was assigned to the conditions auto and Santangelo as "zone all" operator. Markov admitted that an assignment to the conditions auto would be made for a team; a single individual would not be assigned to conditions. In looking at the roll call, Markov determined that Santangelo had been reassigned from conditions to "zone all" and no modification had been made to Putney's assignment. When asked to examine Putney's memo book, however, Markov testified that it showed him reassigned to "zone all" with the Respondent and Santangelo. He agreed that the roll call was not reflective of this change.

Markov affirmed that his duties sometimes included working as desk officer. Summonses issued within a 24 hour period are deposited in a box atop the desk and the contents are inventoried on the first platoon. Markov stated that an officer breaks down the summonses by parking violations ("A" summonses), moving violations ("B" summonses), and criminal court violations ("C" summonses) and then separates them and forwards them accordingly.

With respect to Patrol Guide § 202-14 Subsection 20, Markov indicated that mandates the desk officer to “process the summonses issued during previous 24 hour period when performing duties in the first platoon.” He asserted that it was his responsibility to supervise this function and that it was delegated to an officer to carry out. He contended that he supervised the officer who performed that function by observing them count the summonses. Markov assumed that it was done “in a right manner.” He did not recall who he delegated this function to. It was not documented in his memo book or anywhere else. Markov testified that the officer tabulating the summonses would place valid summonses in an envelope and forward them. If they were not valid, the officer would tell him and return the summons to the issuing officer or in the alternative, the summons would be voided. He stated that an invalid summons reviewed by a subordinate should have been brought to his attention; it was his responsibility to ensure that they performed their job correctly. Markov asserted that the officers knew how to break down summonses and forward them. He had no recollection of an officer ever telling him about the Respondent’s officers submitting invalid summonses.

Per the August 25, 2007 roll call for the first platoon, Markov was working and the Respondent was on vacation. When asked if it was possible that the Respondent was not on vacation, Markov said that the roll call showed that he was. The fourth page of this roll call showed Santangelo to have several assignments, “all scratched out.” Markov testified that one assignment showed him assigned to the conditions auto, another as stationhouse security and another assignment to conditions. He is not assigned as sergeant’s operator, rather, that duty was assigned to Officer Stroming on the roll call.

In examining Santangelo's memo book for August 25, an entry at 8:30 pm showed a "post change" to sergeant's operator. Markov agreed that this was inconsistent with the roll call for that tour.

Markov agreed that the Respondent never complained when he was reassigned to patrol duties, however, he did express multiple times that the ferry sergeant should have been put on patrol. Markov admitted that the Respondent did not often express what he felt other people's assignments should be. He opined that the Respondent wanted the ferry sergeant to perform patrol duties so that he did not have to.

When presented with a June 17, 2007 summons purportedly written by Weinstein, Markov agreed that there were defects on it. He noted that it lacked an ID number, no state of identification or expiration date. Markov acknowledged that had he seen a summons such as this, he probably would have flagged it as being problematic. In looking at the June 17, 2007 roll call, he determined that he was assigned to the desk. Markov reiterated that he does not personally process summonses, rather, an officer is assigned to do it.

Markov acknowledged that between June 1, 2007 and December 2007, he was aware of a burglar referred to as the Ninja Burglar. Within the 120 Precinct, attempting to apprehend the Ninja Burglar was a priority condition. Although he was aware that sergeants were assigned to focus on the Ninja Burglar condition, Markov was unaware of what the Respondent's assignment was because "that came from his supervisor." He disputed that an assignment to catch the Ninja Burglar differed from conditions duties. Markov testified, "If you're assigned to catch a Ninja Burglar, if that was his assignment,

he is still doing conditions.” He clarified that someone can do both conditions and look for the Ninja burglar simultaneously.

Markov was aware that Beer Goggles and Bottomley’s, two bars within the 120 Precinct, were problematic and required the attention of the conditions team. He was unaware of who owned the two bars. When shown a summons issued to Christopher Shaffer for sale of alcohol to a minor, bearing an address of [REDACTED], Markov did not recognize that as the address of Bottomley’s. He agreed that this type of summons is one that would ordinarily be issued to a bar. The summons contained no ID on it. When asked if he was aware of any regulation or law that mandated an ID on a summons, Markov stated that he believed every summons should have an ID because the only way to verify a person’s identity is through picture ID.

Lieutenant Peter Sheehan

Sheehan is assigned to the 120 Precinct and has worked there for five and a half years. Presently, he is the special operations lieutenant. From June 1, 2007 to December 31, 2007, his responsibilities were to supervise several units within the precinct, such as the Street Narcotics Enforcement Unit, Anti-Crime Unit, Conditions Unit, Domestic Violence Unit, Traffic Safety Unit and the Community Affairs Unit. He also reviewed complaint reports and attended community meetings.

The Respondent worked under Sheehan for three years. He was also familiar with the five officers who worked under the Respondent, assigned to the conditions team. Those officers have all since been transferred from the 120 Precinct to different commands because of the misconduct involved in this case.

Sheehan testified that from June 2007 to December 2007, the Respondent oversaw the day-to-day operations of the conditions unit including the amount of activity and goals the unit needed to meet. Sheehan spoke with the Respondent about conditions that needed to be addressed and quality of life complaints.

Sheehan recollected the Respondent complaining about his assignment three or four times over the period that the Respondent worked for him. The complaints concerned being assigned to patrol duties in lieu of his regular conditions assignment. Sheehan did not recall if the Respondent ever complained about Markov. He stated that the Respondent did not complain about not being able to perform supervisory functions as a result of having his assignment changed during his tour. Additionally, Sheehan testified that during the period that the Respondent was assigned to the first platoon, the monthly goals of the conditions team were met.

Sheehan testified that when an officer issues a summons for a violation, the officer stops the individual, requests identification, explains the reason for the stop and conducts a warrant check. The captions on the summons are completed, the person's identification is returned and they receive a copy of the summons. In the event that an individual does not have proper identification, an arrest is made and the person is taken to the stationhouse to attempt to verify their identity. The officer then documents the stop in their Activity Log. Sheehan noted that a summons is voided if it is not properly completed.

Sheehan testified that a summons is a four-part carbonless form. One copy is issued to the violator, one copy is retained by the officer, and the remaining two pages are submitted in a box at the conclusion of the officer's tour. Issued summonses remain in

that box until they are entered into a computer. Sheehan said that a summons cannot be issued without first conducting a warrant check and that can be done via radio or through the mobile digital computer in a police car. To ensure that an officer is completing a summons properly, a supervisor can examine the summons to see that all captions are completed, check the officer's memo book, or respond to the scene where an officer is issuing a summons. He testified as to other quality control procedures such as checking roll calls to ensure that an officer who issued a summons on a particular day was actually working that day, and computer checks.

Sheehan testified that a police officer completes an activity report and submits it to their supervisor on a monthly basis. The report reflects the officer's daily assignments and activity for a given month. Members of the conditions team submitted their monthly activity reports to the Respondent. In turn, he prepared a supervisor's recapitulation report each month and submitted it to the precinct's commanding officer. Sheehan affirmed that he reviewed recapitulation reports for June 2007 to December 2007, and stated that he did not complete any data on those reports during that period. He stated that a sergeant is supposed to verify a subordinate's activity throughout the month as well as when they submit their monthly report at the end of the month.

Sheehan further testified to methods by which a supervisor can verify subordinates summons activity. He explained that all issued summonses are entered into a computer database. The particulars concerning the summons are entered, such as who issued the summons and who it was issued to. He contended that the computer was accessible by "everyone with a code" and that a code could be obtained from the ICO. Another method of verification is to review the summons log book, the book that officers

sign out new books of summonses in order to ensure that they actually signed out summonses. Lastly, a review of the roll call would show if an officer was working on a particular day where he purported to have issued summonses.

Sheehan reiterated that he reviewed the monthly activity reports for the seven month period in this case. He compared that information with the information in the computer database. When shown a report prepared by IAB comparing the activity reported on the officer's monthly reports versus what was reported on the computer database (DX 21), Sheehan affirmed that he determined the report was accurate as he personally verified it. He noted that the month of December was missing.

In examining DX 21, Sheehan testified as to what each officer reported that they issued versus what was recorded in the computer database, in total, from June 2007 to November 2007. He said Santangelo reported 62 summonses in his activity reports but the database showed he only wrote 23, for a discrepancy of 39 summonses. Putney reported 80 summonses in his activity report and the database reflected 37, for a discrepancy of 43 summonses. Weinstein reported 50 summonses in his activity reports and the database showed 37, for a discrepancy of 13 summonses. Uske reported 71 summonses in his activity reports and the database reflected 47, for a discrepancy of 24 summonses. Finally, Epstein reported 75 summonses in his activity reports and the database reflected 23, for a discrepancy of 52 summonses.

On cross-examination, Sheehan testified that he was the Respondent's direct supervisor. He admitted that it was his job to correct any errors that he spotted in his supervision of the Respondent. He was unable to cite any Patrol Guide regulation requiring that the Respondent check the summons database and he never instructed him

to do so. He explained that it was not within his responsibility to check the summons database for the time period in this case. Sheehan stated that he had used the summons database before, but for other purposes, such as preparation for "CompStat." He denied it was his responsibility to go into the database to check summonses for one specific person. Sheehan stated that he would check the database for reports and statistics as to how many summonses were written at a specific location or for a certain violation.

Sheehan stated that he had seen the recapitulation reports that summarized the activity that was reported by the officers. He asserted that it is the direct supervisor's duty to review the monthly activity reports, ensure it is accurate, compile it into the recapitulation report, and sign it. Sheehan explained that his responsibility was to review the recapitulation, determine if any officer had outstanding activity and to commend them, or, if they had any deficiencies, to speak to the sergeant about it. The Respondent could have used any means to verify that the information the officers were submitting were accurate.

Sheehan admitted that there were times where he had filled out the recapitulation reports because the Respondent was not around. He admitted that when he did, he did not check the database to see if the information on the officer's activity reports was correct. When asked if he only relied on the official documents submitted by the officers, Sheehan stated that he relied on the officers to fill it out and on another sergeant to verify the numbers at another time.

Sheehan acknowledged that the midnight desk officer is in charge of reviewing the summonses for the day, is responsible for breaking them down, sending them to the appropriate agency, and keeping a copy at the command. The desk officer's function is

to look at the summons and ensure that all captions are filled out and to forward the summons to the agency. When Sheehan was given an actual copy of a blank summons by the Court, he described it as having five different parts. He stated that the first copy is forwarded to the criminal court, the second copy is submitted to the command, the third copy is issued to the offender, he was unsure as to the fourth copy, and the fifth copy is retained by the issuing officer.

Sheehan testified that he was aware that the investigation of the Respondent concerned false or improper summonses issued by five officers. Sheehan admitted to having previously instructed the Respondent to conduct enforcement at Bottomley's and Beer Goggles bars. He stated that the Respondent would give him updates on enforcement efforts in the bars.

Sheehan admitted to having testified that Lewis was in charge of the day to day supervision of the conditions unit when he was working. He acknowledged testifying that Lewis had complained about being directed to do patrol and not being able to do his job as a condition sergeant. When asked if Lewis ever complained about being directed to do patrol and not being able to supervise his subordinates, Sheehan answered, "Never

I don't remember him saying supervising his people. Normally what he would say was if he is on patrol he can't enforce bars." He agreed that the point the Respondent was trying to make was that he wanted to be the conditions sergeant and not patrol sergeant. Sheehan noted that it was a possibility that the Respondent could supervise his conditions team while assigned as patrol sergeant.

On re-direct examination, Sheehan testified that the Respondent did not complain about patrol interfering with his ability to verify the activity of his subordinates. He

admitted to having testified that a supervisor is only responsible when they are on-duty. However, he asserted that the activity reports are the responsibility of the supervisor, and at the end of the month, the supervisor has the responsibility to verify the activity. Lewis was the supervisor of the five officers in this case.

DISCUSSION

In this hotly contested matter the Department has recommended a penalty in which the Respondent is to be terminated from his employment. The Respondent has asked that a lesser penalty be imposed.

The charges against the Respondent involve a failure to supervise. Specification No. 1 deals with the issue broadly, speaking of a general failure to “properly supervise” while Specification No. 2 refers to a failure to visit “said members at frequent and irregular intervals and regularly inspecting and endorsing their Activity Logs, as required.” The Respondent’s failure to supervise, according to Specification No. 1 resulted in the issuance of “over one-hundred and forty (140) summonses containing false or omitted entries” by five of his subordinates over a seven month period between June 1, 2007 and December 31, 2007. These summonses constitute the central issue in the case.

It should be noted that each of the five subordinates⁷ has admitted that some of the summonses they issues were false and were issued to fictitious subjects.

⁷ The five subordinate officers are Police Officers Robert Santangelo, Robert Putney, John Uske, Derrick Epstein and Matthew Weinstein.

After the Respondent entered his plea of guilty to the two specifications charged, the Advocate in his opening statement recommended a penalty of termination. Respondent's counsel indicated that this was the first time he had heard such a recommendation but nonetheless elected to continue with the mitigation proceeding.

Also in his opening statement, the Advocate suggested that the Respondent knew of, or was complicit in, the misconduct of his subordinates. He further asserted that the Respondent's subordinates might have acted with the "consent" of the Respondent and that "there is a tremendous amount of circumstantial evidence that I believe will come out during these proceedings that will show the Respondent did know about this activity."

The Advocate asserted that "knowledge is not required to prove or to demonstrate the specifications charged." The Court agrees with that last assertion because the Respondent was not charged with knowledge. Indeed the Court was surprised to hear this allegation given that it was not charged. Further, when asked by the Court if this purported knowledge was the basis of the Department's recommendation of termination the Advocate responded that it was not, and that the recommendation of termination was based on the length of time and number of summonses in the specifications.

Whatever the propriety of raising an uncharged act, which is purportedly not the basis of the penalty recommendation, this Court cannot ignore such a serious allegation. Moreover the allegation of knowledge, let alone "consent" would involve significant malfeasance rather than mere misfeasance or even, as charged here, nonfeasance, and would have to be considered on the issue of penalty – if it were established.

When first asked what the basis for this claim was, the Advocate noted that it was his expectation that the Respondent would admit that summonses were written in the

patrol car in his presence. No such testimony occurred, and the Advocate did not offer in evidence any prior statement by the Respondent to that effect.

When Respondent's counsel attempted to offer in evidence written summaries prepared by IAB of the Official Department Interviews of the five subordinates the Advocate objected, claiming that the summaries, which exonerated the Respondent, did not contain all of the relevant information. As a result the Court declined to accept the summaries without the tapes and transcripts of these Official Department Interviews.

The Court subsequently examined not only the summaries, but the Court listened to those tapes and reviewed the transcripts. The Court found, with one minor exception, which is irrelevant to the instant issue, that the summaries were accurate and included all relevant material.

What each of the subordinates said, in essence, was that they issued summonses to fictitious individuals. These summonses were not turned in to be filed in criminal court and at least one of the subordinates indicated that he shredded the original summonses.

Significantly, each of the Respondent's five subordinates indicated that to their knowledge the Respondent did not know about the false summonses.

During his closing argument the Court brought these matters to the attention of the Advocate, who argued against relying on the statements of the five subordinates as follows:

Is it really believable to anyone that this was a coincidence based on circumstance I just enumerated to you the only evidence, the only evidence that Respondent relies on stating that he didn't know about these five officers misconduct was the statements of those five officers. Now, to believe that you would have to believe that these five officers independently on their own without each other knowing did the exact

same misconduct in the exact same way during the exact same time period for the exact same reason and it just so happened to be a coincidence that they all worked together and worked for the Respondent. Now, thinking about that it just doesn't make any sense that these five officers didn't know about that. And by the way, if I am sure if you have seen in the transcript since you read them Police Officer Putney and Police Officer Weinstein admitted that they did know of each other's particular misconduct. Now, therefore the only evidence that they are seeking to show that they didn't know about it is based on witnesses that we pretty much know were dishonest about that very specific issue. Who else knew about it. (T. 485-486).

A second Advocate on the case put the argument this way:

I think these are reasonable argument that can be made based on the circumstances of the GO they all say none of us knew what the other one was doing yet they all did the exact same misconduct I think it's a reasonable point to be able to argue about and it's a conclusion that can be drawn. (T. 486-487).

The ultimate conclusion the Advocates are trying to draw is that the Respondent “knew” or “consented” and possibly encouraged the acts of his subordinates in preparing false summonses. To the extent that this conclusion is based upon the supposition that the subordinates lied at their Official Department Interviews, it is an inference upon an inference, which is impermissible.

The inference that these five subordinates lied, as the argument itself makes clear, is contrary to the very statements of those subordinates. There was not even the suggestion that the Department has any direct evidence that they lied. Moreover each of those five officers gave statements at their Official Department Interviews after being advised that a failure to tell the truth might lead to termination of their employment with the Department. As a result, each of the subordinates had a strong motive to be truthful. Further, because they were interviewed separately, they had to be concerned that

someone else would give them up if they were lying. No motive has been suggested as to why, under those circumstances, all five would insist that the Respondent did not know about the false summonses and none seems readily apparent.

Thus the inference the Advocates wish to draw from the fact that all of them engaged in similar conduct is countered by other inferences.

Another problem is that none of subordinates was asked how they learned to create these false summonses. The Official Department Interviews are wholly within the control of the Department and if the Advocate thought that they learned of the practice from the Respondent, these officers should have been asked about that.

All of this just deals with the inference that the subordinates lied. The more important issue is the Respondent's alleged knowledge.

To the extent that the fact that the Respondent's subordinates issued false summonses provides proof that the Respondent knew, or encouraged, or trained them as to how issue false summonses, it is again, an inference. To rise to the level of circumstantial evidence, it must exclude, or at least render remote, other possibilities consistent with the Respondent's innocence. There are a number of other possible ways these officers could have learned to issue summonses to non-existent people, including from each other, from other officers or by simply figuring it out for themselves. At best, the facts establish that it was possible that the Respondent knew or told them how to issue phony summonses, but it is merely speculation and conjecture that he did so.

One other argument raised by the Advocate in his closing statement merits comment only for the point of completeness. Touching on the claim made at the outset of the trial that misconduct occurred "directly under [the Respondent's] eye while –

sometimes while these officers were sitting in a car next to [the Respondent]" the Advocate in his closing argument said that the misconduct occurred, "while the Respondent was working, while the Respondent was not working and at times while the Respondent was assigned to the same automobile as the misconduct was likely taking place."

When asked to explain this statement the Advocate stated:

Based on roll call records indicating he was assigned to the same car as him based on Santangelo's and other officers that they did this while assigned working with him and the fact that some of these summonses not all of which were actually put into evidence but which I review the majority of were issued stating to be issued at least on that particular date that they were assigned to the same vehicle as Sergeant Lewis. That is the basis of that statement. Now will we ever know based on the fact no there was no quality control. (T. 484).

When asked how he could make such an assertion the Advocate responded that he was doing so based on the documents.

The problem with this line of thinking is that, as the Advocate concedes, some of this misconduct occurred when the Respondent was not even working. Moreover some of the false summonses were back dated, meaning that just because a false summons claimed to have been issued on a particular date is not any evidence that it was actually issued on that date. Consequently the records are meaningless as proof.

Santangelo, who was the Respondent's driver and apparently the subordinate the Advocate was referring to, specifically addressed this issue during his Official Department Interview. Santangelo was asked when he prepared phony summonses and he stated, "If I had time possibly in the locker room. If I sit in the car by myself I would do it in the RMP." He agreed that, as the Respondent's driver, the Respondent was present with him a "majority" of the time, but given the Advocate's argument, it must be

pointed out that a majority of the time is not all of the time. In the end, Santangelo's statement that the Respondent was not present when he wrote the fictitious summonses is un-impeached.

The Department may believe that the Respondent knew about the misconduct of his subordinates, indeed the Department may even believe he promoted and encouraged it, but the Department has offered nothing by way of proof to support those suspicions. Moreover, the only actual proof the Department has is that the Respondent did not know of the misconduct and that those who were directly involved purposefully kept him in the dark about it.

Why this uncharged and un-provable allegation of knowledge became a part of this proceeding remains a mystery to this Court, particularly given that the Advocate noted that he was not basing his recommendation of penalty upon it.

On the other side of this case, the Respondent's claims that he was denied the opportunity to take vacation or to have meal breaks while on modified assignment do not constitute "mitigation" and were demonstrated to be, at best, misleading. Further his claim that the 120 Precinct is the busiest precinct in the city and that he was assigned to patrol 90 percent of the time are exaggerations. His effort to blame the problem on supervisors for poor administration of the precinct and on his colleagues for sloth was, to say the very least, unseemly.

These extreme and unnecessary arguments on both sides draw the case away from the central issue of evaluating an appropriate penalty for the Respondent's admitted failure to supervise.

The Department has stated that the reason for their termination recommendation is the long period time of time (seven months) covered by the specifications and the number of incidents, (140 summonses). The Respondent has asked the Court to consider the statements of the officers who issued these false summonses. He has demonstrated correctly that each of the five officers testified that the Respondent did not know about the issuance of false summons and it may be fairly inferred from their statements that they hid the misconduct from him.

The evidence established that some of the summonses in question lacked adequate identification information regarding the subjects of the summonses such as their driver's license number. The evidence also indicates that the summonses issued to non-existent persons were never turned in by the offending subordinate and instead were destroyed. There was no clear calculation as to how many of the 140 were those turned in with inadequate information and how many were those summonses that were never turned in.

As to the summonses that were turned in, the evidence indicates that they were not turned in to the Respondent, but rather they were deposited in a box located at the precinct desk. Each morning, the summonses were retrieved by a police officer who was assigned and supervised by the desk officer to tabulate and forward the summonses for processing.

The Respondent would not have seen those summonses and it is not clear how much responsibility he would have for the lack of completeness in those summonses. Additionally the Patrol Guide section relied on by the Department does not support the Department's contention that failure to include driver's license information on a summons is a violation of Department Rules. Patrol Guide § 209-09 requires the officer

to obtain and review a driver's license in "traffic cases." None of the summonses in evidence and quite possibly none of the summonses issued by the Conditions Unit involved "traffic cases."

The Department puts great stock in the fact that the Respondent signed off on the Supervisor's Recapitulations, which are monthly reports listing the number of summonses issued by his unit. However it is not clear how the Respondent was supposed to get the accurate number of summonses issued, given that the summonses were not returned to him. For instance if he reviewed his subordinates' summons books he would not have known that summonses were issued to non-existent persons and that these summonses were never turned in.

The only way the Respondent could have found the discrepancy is through the summons database in the Department's computer records. Those records would have shown a discrepancy between the number of summonses his subordinates claimed to have issued and those that were actually turned in, which appears in the database. There is, however, no evidence that this is the type of cross-checking a sergeant would ordinarily conduct. For instance, in the list of specific supervisory failures found in Specification No. 2, checking these computer records is not included. Indeed, the lengthy list of responsibilities of a Patrol Supervisor listed in Patrol Guide § 202-17 contains 26 items but does not include such a database check. Moreover the database, a supervisory and management tool, was certainly available to others above the Respondent in the chain of command, who were also in a position to see the discrepancy.

Further, it seems unlikely that frequent and irregular visits to his subordinates along with checking and endorsing their Activity Logs, as noted in Specification No. 2, would have detected or prevented these false summonses from being issued.

To be sure the Respondent has acknowledged by his plea of guilty the fact that he did not do all the things a supervisor should do. The question here is whether his failures are so egregious as to justify termination.

While the seven month time period of this misconduct is long and the number of falsely issued summonses is high, these factors do not form the basis for the dismissal of a long time member of the service. The Court could not find nor did the Department provide a single case in which termination was imposed as a penalty for failing to supervise.

There is no doubt that the Department believes that the Respondent is culpable of misconduct beyond the failure to supervise but it did not charge nor prove any such higher level of misconduct. This Court cannot recommend a penalty based on the Department's surmise, it must recommend one that is based on the misconduct before it.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on January 21, 1985. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

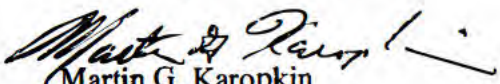
One aspect of that service record that needs to be discussed is the relationship of this case to the Respondent's recent disciplinary adjudication. Disciplinary Case Nos. 82103/06, 82873/07 & 83810/08 were adjudicated before this Court between November 2008 and January 2009. A decision/order signed by the Police Commissioner on October 16, 2009, imposed as a penalty the loss of 30 suspension days previously served and placed the Respondent on dismissal probation.

The charges in those cases covered a period of time from January 1, 2006 to March 10, 2008. The current charges cover a period of time that falls within that period. As a result, that prior adjudication cannot be considered a prior disciplinary action for the purpose of an enhanced penalty referred to as "progressive discipline."

On the other hand, the charges herein can and should be considered as cumulative to the charges in that case.

Section 14-115 of the Administrative Code provides for a penalty of up to 30 days for each "offense." The two specifications in this case cover the same period of time and constitute, in essence, the same offense; a failure to supervise. An appropriate penalty for the misconduct in this case, balancing all of the relevant factors, is for the Respondent to be suspended without pay for 30 days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner - Trials

APPROVED

APR 05 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT WILLIAM LEWIS
TAX REGISTRY NO. 885949
DISCIPLINARY CASE NO.: 85271/09

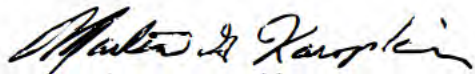
The Respondent was appointed to the Department on January 21, 1985. His personnel file indicates that he has received ratings of 3.0, "Competent" in 2008, 3.5, "Competent" in 2007, and 4.5, "Highly Competent" in 2006. In his 25 years of service, he has reported sick on 88 occasions, six of which were line [REDACTED]

[REDACTED] The Respondent has received 11 medals, ten of which were for excellent police and one for meritorious police duty.

The Respondent's file reflects two prior disciplinary adjudications. In 1993, he received charges and specifications for striking a handcuffed prisoner, the disposition of which is not clear. In 2008, the Respondent was the subject of three disciplinary cases tried concurrently, where he was found guilty of wrongfully purchasing and owning real estate for rental purposes within his command, failing to submit a change of name, residence or social condition form, wrongfully engaging in off-duty employment without permission to do so, wrongfully employing individuals to engage in business dealings on his behalf with establishments within his command, and failing to notify the Department that his relative was employed at an establishment located within the parameters of his enforcement duties. A penalty of a forfeiture of 30 suspension days already served and one year dismissal probation was imposed.

Based on his overall record, the Respondent is presently on Level III Dismissal Probation.

For your consideration.


Martin G. Karopkin
Deputy Commissioner - Trials

7- SUSPENDED FROM DUTY:

POLICE OFFICERS
Effective 0001, March 10, 2010

Com'd.

Res.Pct.

[REDACTED] [REDACTED] [REDACTED] [REDACTED]

Effective 2145, March 9, 2010

[REDACTED] [REDACTED] [REDACTED] [REDACTED]

8- SERVICES TERMINATED:

Pursuant to Section 5.2.7., of the New York City Department of Personnel Rules & Regulations, the following Uniformed Member is terminated:

Effective 2400, March 9, 2010
PROBATIONARY POLICE OFFICER

Com'd.

M.E.L.D.

[REDACTED] [REDACTED]
[REDACTED]

9- DISMISSED:

Sergeant William J. Lewis, 885949, Fleet Services Division, is DISMISSED from the New York City Police Department, effective 1800, March 9, 2010, pursuant to the powers vested in the Police Commissioner.

10- CHANGE OF NAME:

[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

11- AMENDMENT:

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]